

11. 9:00 AM CASE NUMBER: C25-03525
CASE NAME: JOSEFINA PAPANGGO VS. 2ND CHANCE MORTGAGES, INC.
COMPLAINT
FILED BY: 2ND CHANCE MORTGAGES, INC.
TENTATIVE RULING:

Motion withdrawn as moot by the moving party.

12. 9:00 AM CASE NUMBER: MSC21-00779
CASE NAME: TEDENEKILSH ZERHIOUN VS. YOSEPH DEMISSIE
TO ENFORCE JUDGMENT AND FOR ISSUANCE OF WRIT OF POSSESSION / CONTD FROM 6/26/27
PER TR
FILED BY: DEMISSIE, YOSEPH
TENTATIVE RULING:

Defendants Hareg Teffera and Yoseph Demissie's motion to enforce the judgment is **granted in part and denied in part.**

Defendants filed a motion to enforce the judgment, which also sought an order requiring Plaintiff to move out of the property because Plaintiff stopped making monthly payments and because it would be easier to sell the property if Plaintiff moved out.

This motion was originally set for June 26, 2026. The Court issued a tentative ruling confirming various prior orders entered in this case and the Court stated that it would enter one order regarding the sale of the property that incorporated all the prior orders. The Court also requested supplemental briefing on the claimed monthly payments and the request for an order requiring Plaintiff to vacate the property. Defendants filed an unapproved reply to Plaintiff's supplemental brief and that reply is stricken. The Court has reviewed the requested supplemental briefs.

Monthly Payments

As to the monthly payments, Plaintiff has remained in possession of the property since this lawsuit was initiated. Defendants and their attorney state that Plaintiff had made monthly payments, but stopped making her monthly payments of \$1,380 in September 2023. (Webb dec. ¶16; Teffera dec. ¶¶6-7; Demissie dec. ¶17.)

Defendants argued in their initial papers that Plaintiff was ordered to make monthly payments while she remained in possession. In the first tentative ruling, the Court noted that it could not find a copy of an order where Plaintiff was required to make monthly payments. In the supplemental briefs Defendants acknowledged that there was no written order. Defendants argue that the payment history shows that Plaintiff's occupancy of the property was conditioned on monthly payments,

however, there is no court order to that effect. Therefore, the Court cannot order Plaintiff to vacate the property for failing to make payments that she was not ordered to make.

To the extent Defendants want an order requiring Plaintiff to make payments while she remains in possession, that issue is not properly noticed as part of this motion and may be re-raised in the future.

Evidence Plaintiff is interfering with the Sale

In the supplemental briefing, Defendants were told they could provide additional evidence on the need for the property to be vacant in order for it to be sold.

Defendants provided a declaration from their attorney with one photograph of the outside of the property. (Webb dec. ¶12 and ex. A.) Defendants also offer argument that it is difficult to show and sell the property while Plaintiff lives there, but there is no evidence that the property cannot be sold. Further, the evidence presented does not show that Plaintiff has improperly interfered with the prior attempts at sale.

Defendants have raised concerns about obtaining access to the property in order to list and sell it. To alleviate this concern, the Court will enter an order that allows the broker access to the property with reasonable notice to Plaintiff.

In the prior tentative ruling on this motion, the Court noted that “Plaintiff is free, however, to bid on the property when it is listed for sale on the open market.” This statement was made because Defendants had not shown that the law prevents a co-owner from being the highest bidder on the open market and purchasing a property. That being said, the Court is concerned that Plaintiff may have an incentive to interfere with the sale or otherwise make the property appear less desirable to lower the purchase price so she can bid on it for a lower price. If there is evidence that Plaintiff is engaging in such behavior the Court will consider ordering Plaintiff to vacate the property. Defendant would be required to file a motion, but may appear ex parte to have the motion heard promptly.

The Court makes the following findings:

1. Judgment was entered on September 16, 2022.
2. Plaintiff failed to complete the court-ordered buyout within the time allowed by the Judgment and subsequent post-judgment orders.
3. On September 6, 2023, this Court ordered that the Property be sold to the highest bidder and appointed Mariama Gebeyehou of Hartlove & Dudum Real Estate Group as the listing broker.
4. The Court of Appeal affirmed that Order on August 27, 2025.

5. No stay presently exists preventing enforcement of the Judgment.

6. This Court has previously entered orders authorizing the sale of the Property, appointing an Elisor to execute documents necessary to complete the sale, and directing that the net proceeds of sale be deposited with the Court pending further order.

The Court Orders:

1. The Court reaffirms the September 16, 2022, Judgment and all subsequent post-judgment orders directing that the Property located at 1231 Marionola Way, Pinole, California be sold to the highest bidder.

2. The Court reaffirms the appointment of Mariama Gebeyehou as the court-appointed listing broker and reaffirms the authority previously granted to the Court-appointed Elisor to execute all documents reasonably necessary to complete the sale.

3. Plaintiff shall fully cooperate with all reasonable efforts necessary to market and sell the Property, including permitting access Monday through Friday between the hours of 8:00 a.m. and 6:00 p.m. for inspections, appraisals, photography, staging, repairs, open houses, private showings, escrow, title, and closing. Plaintiff must also vacate the premises on one weekend day of each weekend (either Saturday or Sunday) for a 4 hour period for an Open House upon 48 hours written notice from the broker. The broker may enter the property alone or with third parties for purposes reasonably related to listing and selling the property. Unless the parties agree otherwise, the broker shall give written notice to Plaintiff as soon as practical, but at least 48 hours before the broker plans to enter the property. Notice should be given by email to tedeoriginal@gmail.com.

4. Plaintiff shall not interfere with the listing, marketing, sale, escrow, transfer, or closing of the Property.

5. The Elisor is authorized to execute any document necessary to complete the sale should Plaintiff fail or refuse to execute such document

6. All net proceeds from the sale shall be deposited with the Clerk of the Court pending further order regarding distribution.

7. Once the sale proceeds are deposited with the Court, the parties shall notify the courtroom clerk of the need for a Case Management Conference (CMC). No less than 5 court days before the conference, the parties shall file a CMC statement identifying what issues remain in the case and what procedure should be used for deciding those issues.

8. The Court retains jurisdiction to enforce this Order, supervise completion of the sale, and issue any further orders necessary to effectuate the Judgment.